

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

Case No. PCE 2006-0001

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE
LICENSE TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF
COLORADO OF **DENIS L. LEVEILLE, Ph.D., LICENSE NO. 36,**

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners (the "Board") and Denis L. Leveille, Ph.D. LPC ("Respondent") as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed to practice as a professional counselor in the State of Colorado at all relevant times herein.
3. This Order is a full and final resolution of Case Number PCE 2006-0001. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. Respondent treated N.G., a client, from October 1998 through October 2003 for court-ordered sex offender treatment.
 - b. During the course of treatment, Respondent learned that N.G. worked in the construction industry.
 - c. During the time that the N.G. was in treatment, N.G. performed concrete work for Respondent at Respondent's business and home.
 - d. Respondent did not pay N.G. for his time or labor involved with the concrete work.

e. Respondent engaged in a dual relationship with N.G.

5. By virtue of the facts admitted in paragraph 4 above, the Board finds that Respondent violated § 12-43-222(1)(g), (i), and (j), C.R.S.

6. By virtue of the admissions in paragraph 4, Respondent is subject to the following disciplinary sanction(s) that the Board believes is necessary to protect the public health, safety, and welfare.

CLINICAL SUPERVISION

7. Respondent's license to practice professional counseling in the State of Colorado is hereby placed under clinical supervision for three years commencing from the date this Order is fully executed or the date Respondent's clinical supervisor is approved, whichever date is later. During the supervisory period, Respondent agrees to be bound by the terms and restrictions set forth in this Order.

8. The period of supervision is tolled during any time that Respondent is not practicing in this state, and such period of supervision shall resume at such time as Respondent resumes practicing in the State of Colorado in accordance with this Order.

9. Credit toward the period of supervision will be given only for the period of time during which Respondent is practicing as a professional counselor in Colorado, is being supervised by a clinical supervisor, and is in full compliance with all terms of this Order.

10. If, at the end of the clinical supervision period, Respondent has adhered to all terms and conditions of this Order, Respondent may request termination of supervision. Request for termination of supervision must be made in writing to the Board, and Respondent is responsible for establishing, to the satisfaction of the Board, that he has satisfied all terms and conditions of this Stipulation and Order.

EARLY TERMINATION

11. After successful completion of no less than eighteen (18) months of clinical supervision, and successful completion of forty (40) hours of continuing education as described in paragraph 23, and upon written recommendation of the clinical supervisor, and provided that Respondent is in full compliance with all terms and conditions of this Stipulation and Order, Respondent may request early termination of the clinical supervision period from the Board, and the Board shall grant termination at that time if Respondent is in compliance with said terms and conditions.

CLINICAL SUPERVISOR

12. During the term of clinical supervision, Respondent's practice will be supervised by a clinical supervisor. Within 30 days of the effective date of this Order, Respondent shall submit, in writing, three proposed clinical supervisors for the Board's approval. Respondent shall include for consideration a current curriculum vita of each proposed clinical supervisor and a commitment letter from the clinical supervisor stating that s/he has read this Order and understands and agrees to perform the obligations set forth herein. The clinical supervisor shall meet the following criteria:

- a. The clinical supervisor shall be a licensed, certified, or listed, currently practicing mental health professional in the State of Colorado.
- b. It is recommended that the clinical supervisor have a minimum of five years experience and has not been subject to professional discipline.
- c. The clinical supervisor shall have no current or past financial or personal interest in Respondent or Respondent's practice. Former employees and business associates fall under this provision.

13. Respondent must have a clinical supervisor approved by the Board within two months after this Order is fully executed. If this requirement is not satisfied, Respondent must cease practice and agrees to suspension of his practice until a clinical supervisor is approved.

14. After the Board's written approval of the clinical supervisor, Respondent and the clinical supervisor shall enter into a written contract for clinical supervision. The clinical supervisor shall provide a copy of the written contract to the Board as part of his/her first report to the Board. The contract must contain a provision stating that the clinical supervisor has reviewed a copy of this Order, the complaint and responsive documents, any investigative report, and any prior practice evaluation; has read these documents; and understands the duties and responsibilities s/he is undertaking as Respondent's clinical supervisor. The clinical supervisor shall ensure that a written notification is provided to each of Respondent's clients, informing the clients of the name, address, and telephone number of the clinical supervisor. This written notification may be provided in a mandatory disclosure statement.

15. The clinical supervisor shall conduct a practice evaluation during the first month of clinical supervision. The practice evaluation shall examine all aspects of Respondent's practice or proposed practice and his qualifications and ability to practice in accordance with generally accepted standards of practice and with skill and safety for clients, and determine whether he has the necessary qualifications, current ability, and competence to practice. The first clinical supervision report shall include the findings of the practice evaluation.

16. Should the Board determine from the clinical supervisor's evaluation that Respondent cannot practice any part of his practice with skill and safety for clients in accordance with generally accepted standards of practice or does not have the appropriate qualifications, ability or competence for practice, Respondent shall immediately cease any part of the practice that the Board determines, based on the evaluation, he is not qualified, competent, or safe to conduct. Based on the Board's findings and the evaluation, the Board will determine necessary actions that Respondent must take and conditions Respondent must meet so that Respondent can practice with skill and safety for clients in accordance with generally accepted standards of practice in any areas the Board finds Respondent is not qualified, competent, and safe to practice. Once Respondent satisfies the Board that he is qualified, competent, and safe to fully practice, Respondent may resume full practice.

17. The clinical supervision shall consist of individual, in-person (face-to-face) sessions that occur once every two weeks for at least one hour, or such longer time as the clinical supervisor deems necessary. During the clinical supervision sessions, Respondent and his clinical supervisor must review and discuss each of Respondent's therapy groups at least once every month to allow the clinical supervisor to determine whether Respondent is practicing professional counseling in accordance with generally accepted standards of practice and with skill and safety for his clients.

18. The clinical supervisor shall submit written reports to the Board on the fifth day of the month following the first full month of clinical supervision. All subsequent reports shall be submitted on the fifth day of each month for the first twelve reports. After submission of the first twelve reports, unless otherwise ordered by the Board, the clinical supervisor shall submit his/her reports by the fifth day of every third month (i.e. on a quarterly basis) until the clinical supervision is completed.

19. If at any time the Board has questions or concerns regarding the clinical supervision, the clinical supervisor agrees to attend any meeting necessary to address the Board's concerns. The Board will give the clinical supervisor 30 days notice prior to requiring the clinical supervisor's attendance at a meeting.

20. If at any time the clinical supervisor believes Respondent is not in compliance with this Order, is unable to practice with skill and safety to his clients, or has committed a violation of the practice act or rules and regulations, the clinical supervisor shall immediately notify the Board, in writing, and include the basis for this conclusion. A copy will be sent to Respondent. Upon submission of such a report, Respondent shall immediately cease the practice of professional counseling.

21. Respondent shall make efforts to ensure that all reports by the clinical supervisor are complete and timely submitted to the Board. If, in the Board's judgment, the clinical supervisor fails to perform the functions specified by this Order, the Board may require a new clinical supervisor to assume the responsibilities specified herein. If for any reason the clinical supervisor ceases to perform the functions specified in this

Order, Respondent shall submit, in writing, a new proposed clinical supervisor to the Board within 30 days.

22. Respondent or the clinical supervisor may terminate the clinical supervision relationship upon written notice to the other and to the Board not less than 60 days before the date of termination. The notice shall state the reason for the termination. Respondent shall immediately initiate efforts to obtain another Board-approved clinical supervisor, who shall conduct her/his clinical supervision and report to the Board in accordance with this Order.

CONTINUING EDUCATION

23. During the clinical supervision period, Respondent must successfully complete at least 20 hours each year of Board-approved professional continuing education courses in the areas of dual relationships, avoiding client exploitation, transference and counter-transference, legal issues in treatment and ethics. Respondent shall obtain Board approval of the courses prior to enrolling in each course. Upon completion of a course, the provider is to mail to the Board a certificate of completion.

TERMS AND CONDITIONS

24. Respondent will strictly observe the prohibitions set forth in § 12-43-222, C.R.S., and assure that he does not engage in any activities that are prohibited and that he practices in accordance with the generally accepted standards of practice.

25. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing psychotherapy, unless such supervision or consultation is clinical supervision in accordance with this Order.

26. All expenses incurred or associated with the practice evaluation, clinical supervision, education, or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Board.

27. During the pendency of this Order, Respondent agrees that he will provide permission to and allow his clinical supervisor, therapy evaluator, or therapist to provide records and information obtained in the normal course of clinical supervision, therapy evaluation, or treatment to the Board if the clinical supervisor, therapy evaluator, or therapist determines that Respondent is not practicing professional counseling in accordance with generally accepted standards of practice or has a condition that renders him unable to treat clients with skill and safety or that may endanger the health or safety of persons under his care. As part of this Order, Respondent explicitly waives his right to maintain confidentiality of records or information provided to the clinical supervisor, therapy evaluator, or therapist in the normal course of clinical supervision, therapy evaluation, or treatment if the clinical supervisor, therapy evaluator, or therapist determines that he is not practicing professional counseling in accordance with generally accepted standards of practice.

or has a condition that renders him unable to treat clients with skill and safety or that may endanger the health or safety of persons under his care.

28. In the event Respondent relocates to another state at any time during the clinical supervision period, Respondent shall notify the Board of the change of address within 30 days of the effective date of such change.

29. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to § 12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

30. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

31. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §12-43-224, C.R.S.

32. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

33. Respondent shall maintain compliance with all applicable laws, statutes, regulations, and rules pertaining to licensed professional counselors including, but not limited to, § 12-43-222(1)(g), (i) and (j), C.R.S.

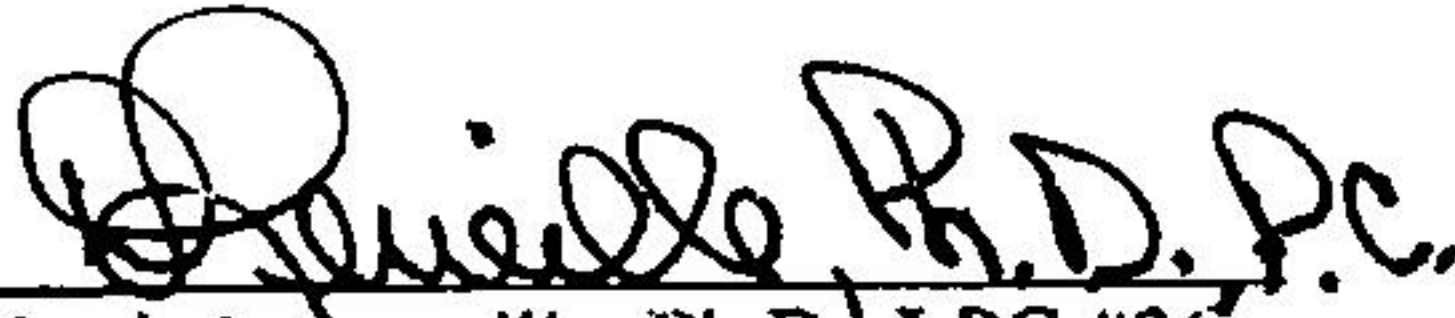
34. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

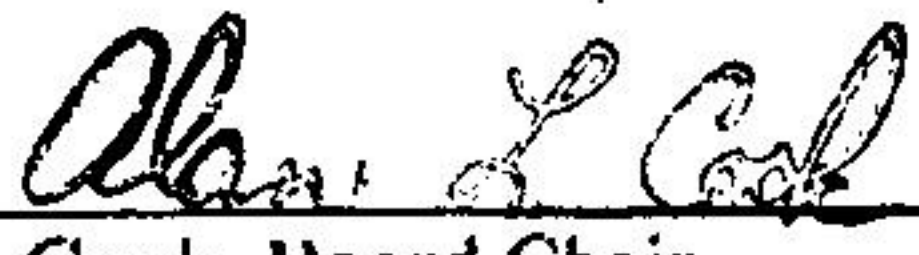
35. This Order shall become effective when accepted and signed on behalf of the Board.

36. This Order shall be a public record at all times in the custody of the Board.

RESPONDENT

**COLORADO STATE BOARD OF
LICENSED PROFESSIONAL
COUNSELOR EXAMINERS**

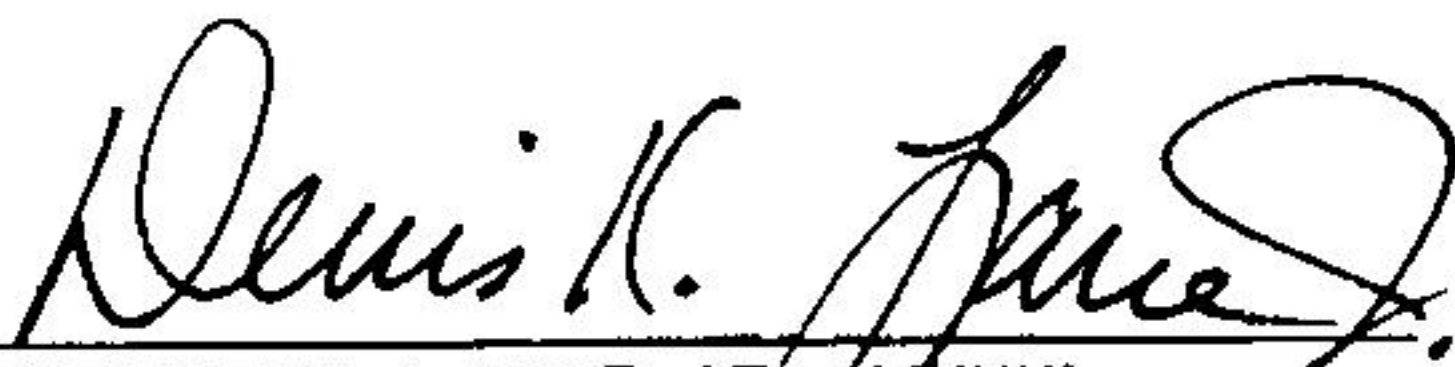

Denis L. Leveille, Ph.D., LPC #36


Alan L Cook, Board Chair

Effective Date: This 23rd day of
January 2007.

APPROVED AS TO FORM:

FOR THE RESPONDENT


DENIS K. LANE, JR., 12099

Attorney for Respondent
Denis Leveille, Ph.D., LPC

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FOR THE BOARD


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BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

MAY 11 2006
OFFICE OF
ADMINISTRATIVE COURTS

STATE OF COLORADO

Case No.

**NOTICE OF DUTY TO ANSWER, NOTICE TO SET, NOTICE OF HEARING,
NOTICE OF CHARGES, AND OPTION TO ENGAGE IN ALTERNATIVE
DISPUTE RESOLUTION**

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE
TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO
OF DENIS LEVEILLE, PhD, LPC, LICENSE NO. 36,

Respondent.

TO: Denis Leveille

NOTICE OF DUTY TO ANSWER

YOU ARE HEREBY NOTIFIED that, pursuant to § 24-4-105 (2), C.R.S. (2005), you are required to file a written answer to the attached Notice of Duty to Answer, Notice to Set, Notice of Hearing, Notice of Charges and Option to Engage in Alternative Dispute Resolution with the Office of Administrative Courts, 633 17th Street, Suite 1300, Denver, Colorado 80202, within 30 days after service of this document. You must also mail a copy of such answer to undersigned counsel for the State Board of Licensed Professional Counselor Examiners ("the Board").

If you fail to file a written answer within 30 days, an order entering a default decision may be issued against your license to practice professional counseling in Colorado for the relief requested in the Notice of Charges without further notice, or such other penalties which may be provided by law.

NOTICE TO SET

YOU ARE HEREBY NOTIFIED that the attorney for Board will appear at 9:00 a.m. on Friday, June 23, 2006 in the Office of the Chief Administrative Law Judge, Office of Administrative Courts, 633 17th Street, Suite 1300, Denver, Colorado 80202, in order to set a date and obtain a location for a hearing regarding the following Notice of Charges. You may be present in person, by counsel, or by telephone by calling the Office of Administrative Courts at (303) 866-5797 at the time and date specified above. In the

event you do not appear or otherwise participate in the setting conference, a date will be obtained and you will be notified in writing of the hearing date, time and place.

NOTICE OF HEARING

YOU ARE HEREBY NOTIFIED that pursuant to § § 12-43-221, 223 and 224, C.R.S. and § § 24-4-104 and 105 C.R.S., a hearing will be held before an authorized administrative law judge at a time and location to be determined pursuant to the attached Notice to Set, for the purpose of determining whether the professional counseling license of Denis Leveille should be revoked or suspended or other lawful discipline imposed for violations of § 12-43-222(1)(g), (i) and (j), C.R.S.

YOU ARE FURTHER NOTIFIED that at the hearing on this matter, you shall have the right to appear in person and/or by legal counsel, to present evidence in your own behalf, to cross-examine any witnesses presented by the Board, and to rebut any evidence presented by the Board. You may also have subpoenas issued on your behalf upon request to the administrative law judge. The Board's statement with regard to an option to engage in mediation is attached hereto for your review and signature. The Board has elected not to mediate this case.

NOTICE OF CHARGES

The Board charges and alleges as follows:

1. Denis Leveille, hereinafter "Respondent," was licensed as a professional counselor in the State of Colorado at all times relevant hereto.
2. The Board has jurisdiction over the person of Respondent and the subject matter of this Notice of Charges.
3. Respondent treated the person identified as NG, whose identity is known to Respondent and identified on the attached confidential key to patient identity, from about 1998-2002.
4. During the time Respondent was treating NG, Respondent asked NG to do concrete work at Respondent's office.
5. NG did work at Respondent's office and was paid for the work with cash.
6. Respondent had discussions with NG about the possibility of going into business together when NG finished treatment.
7. NG did other work at for Respondent, at Respondent's home and office, and received cash payment for all but one job, where he bartered the work for payment owed for treatment.

8. NG did not charge Respondent the full price for his work because he expected to be a business partner with Respondent in the future.
9. NG quit his job working in construction to do work for Respondent, because he thought they were going to start a business together.
10. Respondent told NG not to tell the members of the therapy group of their future business plans.
11. When NG's treatment was completed, Respondent did not enter a business partnership with NG.
12. After NG quit his job, he encountered financial trouble, and Respondent gave NG a cash loan.

COUNT I

(Substandard Care)

13. Respondent, by the above described acts and omissions, acted in a manner that does not meet generally accepted standards of professional counseling practice, in violation of §12-43-222(1)(g), C.R.S.

COUNT II

(Boundary Violations)

14. Respondent, by the above described acts and omissions, maintained relationships with clients that were likely to impair his professional judgment or increase the risk of client exploitation, in violation of §12-43-222(1)(i), C.R.S.

COUNT III

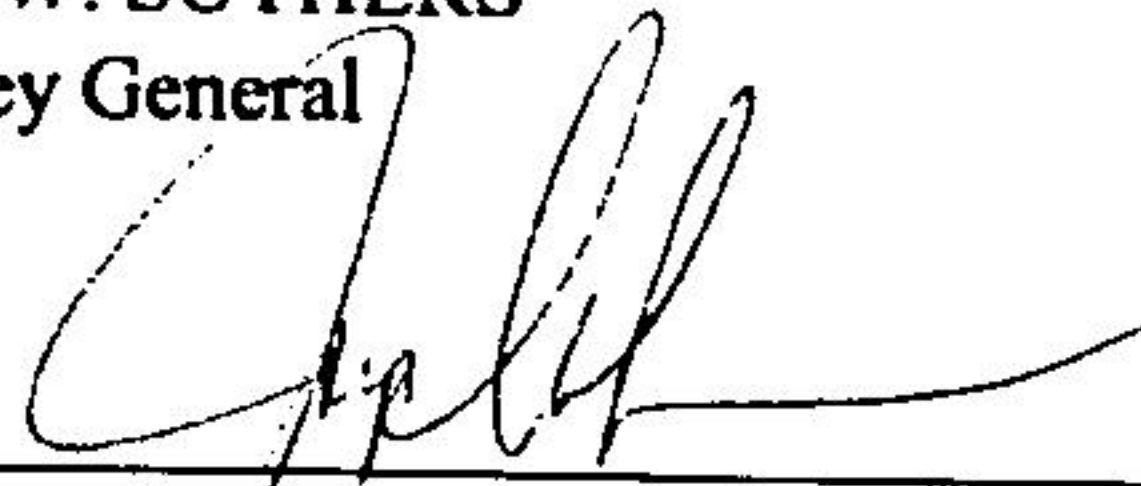
(Undue Influence)

15. Respondent, by the above described acts and omissions, exercised undue influence on the client in such a manner as to exploit the client for the financial gain of the practitioner or a third party, in violation of §§12-43-214 and 12-43-222(1)(p), C.R.S.

WHEREFORE, the Board prays for an Order revoking, suspending, or otherwise disciplining Respondent's professional counselor license, and for such other relief as deemed proper and just.

Dated this 11 day of May, 2006.

JOHN W. SUTHERS
Attorney General



ILENE WOLF-MOORE, 28898*

JOYCE R. COHEN, 35209*

First Assistant Attorneys General

Business and Licensing Section

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**BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS**

STATE OF COLORADO

Case No.

ANSWER

**IN THE MATTER OF DISCIPLINARY PROCEEDING REGARDING THE LICENSE TO
PRACTICE LICENSED PROFESSIONAL COUNSELING IN THE STATE OF COLORADO
OF DENIS LEVEILLE, LPC, LICENSE NO. 36.**

RESPONDENT.

1. Respondent admits the allegations contained in Paragraphs 1, 2, and 3 of the complaint.
2. Respondent denies the allegations and characterizations of facts contained in Paragraphs 4, 5, 6, 7, 8, 9, 10, and 12 of the complaint.
3. In responding to Paragraph 11, Respondent admits that he did not enter into any business relationship with N.G.

COUNTS I, II, and III

1. Respondent denies the allegations contained in Paragraphs 13, 14, and 15 of the complaint.

RESPONDENT'S CLAIMS AND DEFENSES

1. Respondent raises the doctrine of laches in defense of the complaint. The Board has delayed for an inordinate period of time in its handling of this matter, and that delay has prejudiced Respondent.
2. Respondent submits that this complaint should be dismissed, due to the Board's failure to prosecute this matter in a diligent fashion. The Board has failed to comply with all statutes of limitations applicable to matters involving alleged professional negligence.

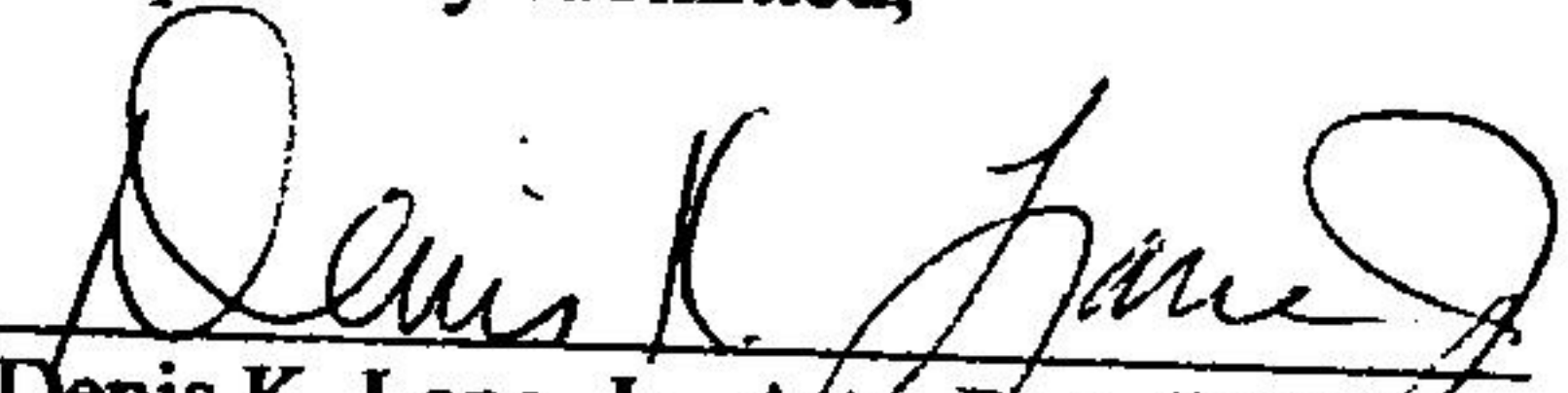
3. The provisions of C.R.S. 12-43-222(1)(g) are unconstitutionally vague and overbroad as applied to this case. This Statute does not put mental health professionals on notice of what conduct may or may not be considered "below treatment standards" in the Board's opinion.

4. The provisions of C.R.S. 12-43-222(1)(i) are unconstitutionally vague and overbroad as applied to this case, due to the fact that the Statute, as applied by the Board, is inconsistent with national standards of practice and national codes of ethics for mental health professionals, such as the APA Code of Ethics.

5. The LPC Board, as constituted, was operating illegally and in violation of Colorado law to the extent that the constitution of the Board violates the provisions contained in C.R.S. 12-43-602. Board members were allowed to remain on the Board, rather than rotating off of it, as required by the Colorado General Assembly in enacting this Statute. Therefore, the Board's action in this case is null and void.

6. The provisions of C.R.S. 12-43-222(1)(j) are unconstitutionally vague as applied to this case. In addition, the Board has applied this Statute in an overbroad manner, where no client exploitation, or harm occurred, and no financial gain to the practitioner occurred.

Respectfully submitted,


Denis K. Lane, Jr., Atty. Reg. #12099
Attorney for Respondent